

		Lastly, Defendant challenges Plaintiff's request for 4.4 hours at \$250 for routine surrender process. The amount is excessive and reduced to 2.2 hours at \$250 (\$550.) Based on the foregoing the court awards fees of \$11,760. Costs: Defendant does not challenge any costs sought by Plaintiff. Therefore, the costs are awarded in the amount of \$650.81. Plaintiff to give notice.
14	Bailor v. Dermlite. LLC 2023-01309601 Motion to for summary judgment/adjudication	Defendants' motion for summary judgment is DENIED. Defendants' motion for summary adjudication is GRANTED in part as to the third and fourth causes of action and DENIED as to the remaining causes of action. Defendants Dermlite LLC, John Bottjer, Thorsten Trotzenberg, and Nizar Mullani (collectively, "Moving Defendants") move for summary judgment or, in the alternative, summary adjudication of each cause of action of the Second Amended Complaint ("SAC"). Defendants' request for judicial notice of the SAC and the court's ruling on defendant Jody Katz's motion for summary judgment or, in the alternative, summary adjudication is granted. (See Evid. Code, § 452, subd. (d).) On 12/18/24, plaintiff Ryan Bailor filed the operative SAC against Moving Defendants as well as defendants Katz and Rosa Torres alleging eight causes of action for: (1) wrongful termination in violation of public policy; (2) retaliation; (3) employment discrimination based upon gender; (4) hostile work environment and harassment in the workplace; (5) intentional infliction of emotional distress; (6) negligent supervision and retention; (7) negligence; and (8) breach of contract. On 11/3/25, the court granted defendant Katz's motion for summary judgment or, in the alternative, summary adjudication. Legal Standard "The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that

	a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid. Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [fn. omitted]; Code Civ. Proc., § 437c, subd. 437c, subd. (c).) Section 437c, subdivision (f)(1) provides as follows: A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Section 437c, subdivision (p) provides as follows: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the
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		cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. In ruling on a motion for summary judgment or summary adjudication, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom [citing Code Civ. Proc., § 437c, subd. (c)] and must view the evidence and inferences "in the light most favorable to the opposing party." (<i>Aguilar, supra</i>, 25 Cal.4th at p. 843.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (<i>Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) First Cause of Action - Wrongful Termination in Violation of Public Policy The first cause of action is alleged against Dermlite only. In the first cause of action, Plaintiff alleges that on 11/17/21, Dermlite terminated him because of discrimination based on gender, i.e. "anti-white-male bias", among other unlawful acts by Defendants, in violation of public policy. (See SAC, ¶¶ 57, 59.) Plaintiff alleges he was terminated after defendant Bottjer had engaged in misconduct towards defendant Torres, been blackmailed by her, and promised her he would fire Plaintiff in support of defendant Torres' anti-white male prejudices, to protect his own reputation from the truth coming out. Defendant Bottjer did not act alone but only after having obtained approval of his plan by defendants Mulani and Trotzenberg. (SAC, ¶ 58.) Dermlite supported defendant Torres' harassment of other white males and although they reported her harassment to defendant Bottjer and others, Dermlite never took any efforts to protect white males who defendant Torres targeted, such
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	as Plaintiff. Dermlite adopted defendant Torres' anti-white-male bias and supported her in her efforts to harass. (SAC, ¶ 59.) Plaintiff alleges this anti-white-male bias was the sole reason for terminating him and there were no facts in existence to justify firing him. (SAC, ¶ 60.) A claim for wrongful discharge in violation of public policy requires proof (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) a violation of public policy substantially motivated the discharge, and (4) the discharge caused the plaintiff harm. (<i>Diego v. Pilgrim United Church of Christ</i> (2014) 231 Cal.App.4th 913, 920.) A wrongful termination claim must be based on a policy carefully tethered to a constitutional or statutory provision. (Id. at p. 921.) A claim for wrongful termination in violation of public policy based on retaliation or discrimination is evaluated under a burden-shifting analysis under <i>McDonnell Douglas Corp. v. Green</i> (1973) 411 U.S. 792. (See <i>Diego, supra</i>, 231 Cal.App.4th at p. 930; see also <i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal.4th 317, 353 [discrimination claim evaluated under the <i>McDonnell Douglas</i> burden-shifting analysis].) Under the burden-shifting analysis, the plaintiff must first show (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. Once the plaintiff establishes a prima facie case exists, the burden shifts to the employer to establish a legitimate, nonretaliatory or nondiscriminatory reason for the adverse employment action. If the employer establishes a legitimate reason for the adverse employment action, the burden shifts back to the employee to establish the employer's proffered reasons was a pretext or provide additional evidence of discriminatory motive. (<i>Diego, supra</i>, 231 Cal.App.4th at p. 930; <i>Guz, supra</i>, 24 Cal.4th at p. 353.) Dermlite argues Plaintiff cannot establish wrongful termination in violation of public policy because Defendants relied on Katz's investigation when making the decision to terminate and the Court already decided that Katz's investigation was not outrageous and not intended to cause Plaintiff to suffer emotional distress. Relying on <i>Jameson v. Pacific Gas & Electric Co.</i> (2017) 16 Cal.App.5th 901, Dermlite contends employers can
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	rely on adequate independent investigations to seek a judgment as a matter of law. Dermlite's argument is based on the following six undisputed facts: Plaintiff testified that he was not sure if he wanted defendant Torres to lose her job due to his accusations. (UMF 1.) Plaintiff further testified that, after he complained about Torres' behavior, he believes that Torres was placed on leave for a period, and that he and Torres received an email from management instructing the two to stay away from each other. (UMF 2.) Plaintiff testified to believing that an independent investigation was necessary after Torres accused him of sexual harassment. (UMF 3.) Plaintiff testified to recalling that Katz interviewed approximately 17 employees and Plaintiff's former employer, Applied Medical, as part of her investigation. (UMF 4.) Plaintiff testified to telling Katz about Torres' harassment of him, why he believed she was retaliating against him, why he believed that Torres would be punished, possibly terminated, due to his complaints about her, and his belief that Katz would follow up with him as part of her investigation. (UMF 5.) Plaintiff testified that he emailed Katz thereafter indicating that he was willing to assist her investigation, but he declined to request a second interview with her. (UMF 6.) However, Defendants have not submitted any evidence that Dermlite relied on defendant Katz's investigation or her ultimate conclusions and recommendations. For example, Dermlite has not provided any declarations or deposition testimony from anyone involved in the decision to terminate Plaintiff stating they relied on Katz's investigation, conclusions or recommendations when making the decision to terminate Plaintiff. Plaintiff's testimony does not establish whether Dermlite relied on defendant Katz. Dermlite's reliance on Jameson is misplaced because the employee in Jameson conceded he was fired on the basis of the report at issue in that case. (Id. p. 910.) The employee instead argued that a jury could reasonably find the employer's "reliance on it was not reasonable or in good faith." (<i>Ibid.</i>) Dermlite's reliance on this court's ruling on defendant Katz's motion for summary judgment is misplaced as well. First, Katz's motion focused on Katz's process in conducting the investigation, not Katz's ultimate conclusions and recommendations, if any. Second, in
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	granting the motion, this court only found that (1) Katz met her initial burden of showing Plaintiff could not establish outrageous conduct on her part, an element of Intentional Infliction of Emotional Distress, and (2) Plaintiff failed establish a triable issue of material fact. The court made no findings regarding Dermlite's ultimate reliance on Katz's investigation. Therefore, Dermlite has not met its initial burden. Accordingly, the motion for summary adjudication of the first cause of action is denied. Second Cause of Action - Retaliation The second cause of action is alleged against Dermlite only. In the second cause of action, Plaintiff alleges he was retaliated against because he complained about Torres' harassment. (SAC, ¶ 66.) He also alleges the rationale for firing him was to make an example of him so other white males would be intimidated from complaining against Torres and to avoid Bottjer's inappropriate treatment of Torres from coming to light. (SAC, ¶ 66.) "[T]o establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (<i>Yanowitz v. L'Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) The McDonnell Douglas burden-shifting analysis discussed above applies to FEHA retaliation claims. (<i>Ibid.</i>) Dermlite contends argues Plaintiff cannot establish a causal link between his protected activity and his termination because Defendants relied on Katz's findings and the Court already ruled that she did not conduct an outrageous investigation intended to cause Plaintiff emotional distress, and therefore Plaintiff cannot establish this cause of action.. Dermlite relies on the same six undisputed facts and evidence here that it relied on with respect to the first cause of action. As discussed above, Dermlite has not submitted evidence that Defendants relied on Katz's investigation, conclusions, or recommendations when deciding to terminate Plaintiff.
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	Therefore, Dermlite has not met its initial burden. Accordingly, the motion for summary adjudication of the second cause of action is denied. Third Cause of Action - Employment Discrimination Based Upon Gender The third cause of action for employment discrimination based upon gender is alleged against Dermlite only. In the third cause of action, Plaintiff alleges his male gender was a factor in Defendants' actions, including terminating him as discussed above. (SAC, ¶¶ 75-76.) To establish a prima facie case of discrimination, "[g]enerally, a plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (<i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal.4th 317, 355.) The <i>McDonnell Douglas</i> burden-shifting analysis discussed above applies to FEHA retaliation claims. (<i>Ibid.</i>) Dermlite argues Plaintiff's claim of employment discrimination based upon gender fails as a matter of law because Defendants took affirmative steps to address Plaintiff's complaints, by Plaintiff's own admission, before arriving at the decision to terminate based on Katz's counsel, which the Court already ruled was not outrageous and not intended to cause Plaintiff emotional distress. Dermlite relies on the same six undisputed facts and evidence to support this argument. However, Dermlite has not submitted evidence that Defendants relied on Katz's investigation, conclusions, or recommendations. Dermlite also argues it can conclusively rebut the presumption of discrimination because Defendants took action to punish Torres and to keep Plaintiff and Torres separated after he complained about her before Katz was retained. (UMF No. 2.) Dermlite contends this suggests Defendants did not have a gender-based preference for
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	Torres. The court agrees. Therefore, Dermlite has met its initial burden. Plaintiff has not filed an opposition. Accordingly, the motion for summary adjudication of the third cause of action is granted. Fourth Cause of Action - Hostile Work Environment and Harassment in the Workplace The fourth cause of action for hostile work environment and harassment in the workplace is alleged against all Moving Defendants. To establish a prima facie case of a hostile work environment, a plaintiff must prove (1) her/she is a member of a protected class; (2) he/she was subjected to unwelcome harassment; (3) the harassment was based on the plaintiff's membership of a protected class; (4) the harassment unreasonably interfered with the plaintiff's work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (<i>Ortiz v. Dameron Hospital Association</i> (2019) 37 Cal.App.5th 568, 581). (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170.) "The law prohibiting harassment is violated when the workplace is permeated with discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment." (<i>Ibid.</i>) An employer is liable only "if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action." (<i>Ibid.</i>) Defendants argue Plaintiff cannot establish they knew or should have known of the alleged harassment and failed to take action. Plaintiff testified (1) that, after he complained about Torres' behavior, he believes that Torres was placed on leave for a period, and that he and Torres received an email from management instructing the two to stay away from each other (UMF 2); (2) he believed an independent investigation was necessary after Torres accused him of sexual harassment (UMF 3); (3) Katz interviewed approximately 17 employees and Plaintiff's former employer as part of her investigation (UMF 4); and (4) he told Katz about Torres' harassment of him, why he believed she was retaliating against him, why he believed that Torres would be punished, possibly
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	terminated, due to his complaints about her, and his belief that Katz would follow up with him as part of her investigation (UMF 5). Thus, by Plaintiff's own admissions, Defendants took action to address Torres' potentially harassing conduct. Defendants have met their initial burden. Plaintiff has not filed an opposition. Therefore, the motion for summary adjudication of the fourth cause of action is granted. Fifth Cause of Action - Intentional Infliction of Emotional Distress The fifth cause of action for intentional infliction of emotional distress is allege against all Moving defendants. "The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result. It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903.) "Regarding emotional distress, the trial court initially determines whether a defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery." (<i>Plotnik v. Meihaus</i> (2012) 208 Cal.App.4th 1590, 1614.) Only where reasonable minds can differ, does the jury determine whether the conduct has been extreme and outrageous to result in liability. (<i>Ibid.</i>) "Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed." (<i>Ibid.</i>)
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		Defendants argue Plaintiff cannot establish that the alleged conduct caused Plaintiff emotional distress because Plaintiff admitted that Defendants needed to retain an independent investigator, i.e. Katz, to advise on the situation at hand, and Defendants relied on Katz's counsel, and the court already ruled that Katz's investigation was not outrageous or intended to cause Plaintiff's emotional distress. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the fifth cause of action is denied. Sixth and Seventh Causes of Action - Negligent Supervision and Retention, and Negligence The sixth cause of action for negligent supervision and retention is alleged against Dermlite only. The seventh cause of action for negligence is alleged against all Moving Defendants. Defendants argue Plaintiff cannot establish a causal connection between Defendants' alleged mistreatment of him and the harm he alleges he suffered, namely his unjust termination, because Defendants relied on Katz's counsel when making such decision. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the sixth and seventh causes of action is denied. Eighth Cause of Action - Breach of Contract The eighth cause of action for breach of contract is alleged against all Moving Defendants. In the eighth cause of action, Plaintiff alleges an implied-in-fact contract between Plaintiff and Defendants, whereby Plaintiff could be terminated only upon just cause and due diligence for determining that just cause. (SAC, ¶ 122.) Plaintiff alleges Defendant breached the contract by conducting a sham investigation, placing Plaintiff on administrative leave, terminating him, and disparaging him to third parties. (SAC, ¶ 126.)
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	"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>Coyote Aviation Corp. v. City of Redlands</i> (2025) 111 Cal.App.5th 955, 973; Civ. Code § 1550.) Defendants argue Plaintiff cannot establish they breached the alleged contract because Plaintiff testified he recalls Defendants taking action to punish Torres and keep Plaintiff and Torres separated after he complained about her before Katz was retained, and Defendants' reliance on Katz led them to terminate Plaintiff with just cause. However, Defendants have not submitted evidence that they relied on Katz's investigation, conclusions, or recommendations. Therefore, Defendants have not met their initial burden. Accordingly, the motion for summary adjudication of the eighth cause of action is denied.
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